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P. JURISPRUDENCE

Pharmaceutical Jurisprudence is the study of rules and regulation of pharmacy, pharmacy practice and also relating to drugs and pharmaceuticals.

UNIT - 1st - Drugs and cosmetics Act, 1940
and its rules, 1945

- Drugs and cosmetics act passed
- 10 April 1940
and its rules in 1945.
- This act is to maintain or regulate the import, manufacture, distribution and sale of drugs and cosmetics.
- This act also verify that the drugs

and cosmetics should be manufactured, distributed, and sold only by qualified persons having a licence for this purpose.

Objectives :-

- for controlling the import, manufacture, distribution and sale of drugs and cosmetics by licensing and also by qualified persons only.
- To verify the standards and quality of drugs manufactured in India and to regulate their manufacture, sale & distribution
- To maintain the high standards of medical treatments by avoiding sub-standard in drugs
- for controlling the manufacturing and sale of Ayurvedic, Siddha and Unani drugs.
- for establish DTAB and DCC. ^{ASU}

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Definitions

1) Drugs →

- i) All medicines for internal or external use of human beings or animals and all substances intended to be used for or in the diagnosis, treatment, mitigation or prevention of any disease or disorder in human beings or animals, including preparations applied on human body for the purpose of repelling insects like mosquitoes.
- ii) Such substances (other than food) intended to affect the structure or any function of the human body or intended to be used for the destruction of vermin or insects which cause disease in human beings or animals, as may be specified from time to time

by the central government by notification in the official gazette.

- iii) All substances intended for use as components of a drug including empty gelatin capsules; and

- iv) Such devices intended for internal or external use in the diagnosis, treatment, mitigation or prevention of disease or disorder in human beings or animals, as may be specified from time to time by the central Government by notification in the official Gazette, after consultation with the Drug Technical Advisory Board (DTAB).
- A government gazette is a periodical publication that has been authorised to public or legal notice.

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2) Cosmetics →

Any article intended to be rubbed, poured, sprinkled or sprayed on, or introduced into, or otherwise applied to the human body or any part for cleansings, beautifying, promoting attractiveness, or altering the appearance, and includes any article intended for use as a component of cosmetics.

3) Manufacture →

Any process or ^{look most attracting by adding 'scent'} part of a process

for making, altering, ornamenting, finishing, packing, labelling, breaking up or otherwise treating or adopting any drugs or cosmetic with a view to its sale or distribution But does not include the compounding or dispensing of any drugs, or the packing of any drugs or cosmetics in the ordinary course of retail business.

4) Patent or proprietary medicines → refers to

a remedy whose formula is owned exclusively by the manufacturer and which is marketed usually under a name registered as a trademark.

• In relation to Ayurvedic, Siddha & Unani System of medicines all formulations containing such ingredients mentioned in the formulas described in the authoritative books of Ayurvedic, Siddha, Unani or Tibb systems of medicine specified in the first schedule to the act but does not include the medicines administered by the parenteral route.

• In relation to any other systems of medicines including allopathic, a drug presented in the form ready for internal or external administration of human being or animals and which is not included for the time being in the edition of Indian Pharmacopoeia or any other pharmacopoeia

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5) Misbranded drug → is deemed to be misbranded:

which is false or misleading in any particular.

i) If it so coloured, coated, powdered or polished that damage is concealed or if it is made to appear of better or greater ^{correct, hidden} therapeutic value than it really is; or

ii) If it is not labelled in the prescribed manner.

iii) If its label or container or anything accompanying the drug bear any statement, design or device which makes any false claim for the drug or which is false or misleading in any particular. (eg + + +)

6) Misbranded cosmetics → is deemed to be misbranded:

i) If it contains a colour which is not prescribed

ii) If it is not labelled in the prescribed manner; or

iii) If the label or container or anything accompanying the cosmetic bears any statement

7) Adulterated drug → is deemed to be adulterated

i) If it consists, in whole or in part, of any filthy, putrid or decompose substance ¹¹⁻¹⁻¹¹

ii) If it has been prepared, packed or stored under insanitary ³¹⁻¹⁻¹¹ conditions whereby it may have been rendered injurious ²⁴⁻¹⁻¹¹ to health; or

iii) If its container is composed, in whole or in part, of any poisonous or deteriorating ²¹⁻¹⁻¹¹ substances which may render the contents injurious to health; or

iv) If it contains a colour than one which is prescribed; or

v) If it contains any harmful or toxic substance which may render it injurious to health; or

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vi) If the drug is admixed with any other substance so as to reduce its quality or strength.

8) Spurious drugs/cosmetics →

It is deemed to be spurious:-

i) If it is imported (manufactured in relation to manufacture, sale and distribution of drugs and cosmetics) under a name which belongs to another drugs/cosmetics.

ii) If it is an imitation of or is a substitute for, another drugs or resembles another drug in a manner likely to deceive or bears upon it or upon its label or container the name of another drug/cosmetic.

iii) If the label or container bears the name of an individual or company purporting to be the manufacturer of the drug, which individual or company is fictitious or does not

exists; or

iv) If it has been substituted wholly or in part by another drug or substance; or

v) If it claims to be the product of a manufacturer or company of whom it is not truly a product.

Legal definitions of

Schedules to the Act

Schedules to the

Rules

i) Schedules to the Act →

• First Schedule → This includes the name of

books under Ayurvedic, Siddha, Unani and Tibb system. ASUT

• Second Schedule → This includes the standard to be compiled by drugs

imported and manufactured for sale, sold.

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stored, exhibited for sale, or distributed.

- The following appendix are also included :-

Appendix I :- Data to be submitted along with the application for permission to market a new drugs.

Appendix II :- format for submission of clinical trial reports.

Appendix III :- Requirement for animal clinical ^{Animal} toxicity trials and marketing a new drugs.

Appendix IV :- Number of animals for long term toxicity studies.

Appendix V :- Patient consent form for participation in Phase I clinical trials.

Appendix VI :- four group of fixed dose combinations and their data requirement.

2) legal definitions of Schedules to Rules ⇒

- Schedule A :- contains various forms and formats of letters for applications of licensing etc-

- Schedule B :- contains fees structure for government run labs.

- Schedule C :- contains various biological product and their regulation ^{Inspect, sale, distribution & manufacture} eg serums, Adrenalin, vitamins etc- (parenteral products).

- Schedule D :- contain other special products whose regulation are governed by special provision. (non-parenteral administration)

- Schedule E :- list of drugs exempted from the provision of import of drugs.

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- Schedule F₁ :- contains various poisonous substances under the Ayurvedic, ASU Siddha and Unani systems of medicines.
- Schedule f :- This contains regulation and standard for running a blood bank.
(eg. space, minimum equipment required etc..)
- Schedule f₁ :- This contains regulation and standard for Vaccines
- Schedule f₂ :- This contains regulation and standard for surgical dressing united tapes.
- Schedule ff :- This contains regulation and standard for ophthalmic preparations
- Schedule G :- contains those substances which can be used only under medical supervision and which are to be labelled accordingly
eg. hormonal preparations, Testosterone etc..
- Schedule H :- contains prescription drugs.
(Not to be sold by retail without the prescription of a Registered medical practitioner).
- Schedule HX :- for curbing (reducing) the misuse of antibiotics & other drugs.
- Schedule I :- contains a list of various diseases and conditions that cannot be treated under any drug currently in market. (No drug may legally claim to treat these diseases).

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- Schedule K :- List of drug exempted from the provision of the manufacture of drugs.

✓ Schedule M :- Good Manufacturing Practices (GMP) requirements of factory premises, plants, and equipment.

- Schedule M₁ :- Requirement of factory premises for manufacture of homopathic prepⁿ.

- Schedule M₂ :- Requirement of factory premises for the manufacture of cosmetics.

- Schedule M₃ :- Requirement of factory premises for the manufacture of medical devices.

✓ Schedule N :- Contains list of minimum equipment for efficient running of a pharmacy

- Schedule O :- Contains various standard for disinfectant fluids.

✓ Schedule P :- Contains regulation regarding life periods of drugs.

- Schedule P₁ :- Contains regulation regarding package size of drugs.

- Schedule Q :- Contains a list of permitted dyes, pigments and colours in soap and cosmetics.

- Schedule R :- Contains various regulations and requirement for condoms and other mechanical contraceptics.

- Schedule R₁ :- Standard for medical devices.

- Schedule S :- Standard for cosmetics.

✓ Schedule T :- Contains various regulation of AYurvedic, Siddha and Unani Products.

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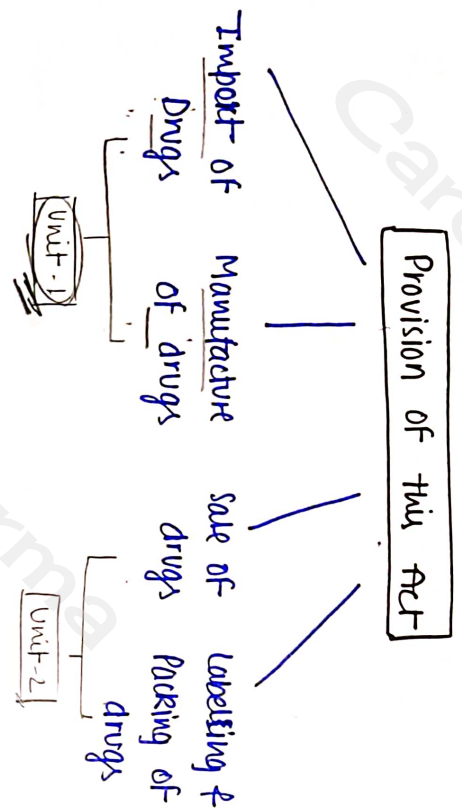
- ✓ Schedule U :- Contains various regulation and requirements for record keeping.
- Schedule X added
- Schedule V :- Contains standards for patent or proprietary medicines.
- Schedule M :- Contains list of drugs to be marketed under generic names only.
- 2000 :- Schedule T of Ayurvedic, Siddha and Unani systems was introduced.
- ✓ Schedule X :- list of drugs whose import, sale, labelling, and packaging are governed by special provision.
- 2011 :- Schedule HX introduced
- ✓ Schedule Y :- Contains requirements and guidelines on clinical trials for import and manufacture of new drugs.
- Now, Acc. to this Schedule Drug can be divided into four categories:-
 - 1) Drugs specified in Schedule C, C₁ and X.
 - 2) Drugs not specified in Schedule C, C₁ and X.
 - 3) Drugs specified in Schedule C and C₁ only. (not in X).
 - 4) Drugs specified in Schedule X.
- Different Amendment in Schedule to the Rules :-
 - 1988 :- Schedule E, I, L have been deleted.

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IMPORT OF DRUGS

• It means to bring any drugs and cosmetics into India from foreign (any other country).

• Now, the import of drugs and cosmetics is regulated by the provision of this drugs and cosmetics Act.

— Classes of drugs and cosmetics (provided) from import (औराने से आया import से आया).

• Any drugs or cosmetics which are not of standard quality.

• Any drugs or cosmetics which are misbranded, adulterated and spurious.

• Any drugs or cosmetics which require import licence and imported without such licence.

• Any patent or proprietary medicine, the true formula or list of active ingredient with their true quantities is not displayed on the label or container in prescribed manner.

• Any drug which claim to cure or prevent any disease described in Schedule T.

• Any drugs or cosmetic for which manufacture, sale or distribution is prohibited in country of its origin.

• Any cosmetic containing any such ingredient which may render it unsafe or harmful for use.

• Any drugs or cosmetics which import is provided by Rule.

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1. Import under license or permit

- A. Drugs specified in Schedule C & C₁ only.
- B. Drug specified in Schedule X
- C. Drugs for examination, test or analysis.
- D. Drugs for personal use.
- E. Any new drug.

A). Drugs specified in Schedule C & C₁
(Import of Schedule C & C₁ drugs).

The license for the import of Schedule C & C₁
drugs requires following conditions :-

- Licensee must have adequate ^{suitable} facilities for storage.
- Licensee must maintain the records of sale of drugs, showing particulars of the names of the drugs and of the persons to whom they have been sold.
- Licensee must allow an inspector to inspect the premises, where imported drugs are

stored and to check the record and to take the samples for test or analysis.

- Licensee, shall supply the sample of drugs from all batches to the licensing authority for test or analysis. (not sell till test).
- Licensee must comply with undertaking given in Form No. 9.

• The import license may be cancelled or suspended, if condition are not satisfied.

B. Drugs specified in Schedule X (Import of Schedule X drugs).

Required following conditions :-

- License is necessary and licensee must have adequate facilities for storage.
- The license granted ever before should not be suspended or cancelled.
- Applicant must be reputable in the occupation, trade or business.

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C. Import of small quantities of drugs for examination, test or analysis.

Required following conditions:—

- The licensee must use imported drugs exclusively for the purpose for which they are imported and specified in the license.
- Licensee must maintain the records of imported drugs, showing particulars of their quantities, names of manufacturers & date of import.
- Imported under license in form-11.

D. Import of drugs for personal use
Required following conditions:—

- The drug must be bonafide personal use.
- The quantity should be reasonable and covered by AMP prescription.
Registered Medical Practitioner.
- The drug shall be declared to the customs authority, if thus direct so.

• More than 100 doses are imported with license, applying in form No.12A and 12B.

E. Import of new drug.

Required following conditions:—

- License is required.
- The license is required to provide the documents of standards of quality, purity and strength.

— Drugs exempted from provision regulating imports of drugs

- Substances not intended for medical use.
- following substance which are used both as article of foods and drugs. (exempted from all provisions).
- Powdered milk, fores, oats, lactose (not for parenteral use)
- Cinnamon, pepper, zinger & other condiments + spices

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- Some important forms for imports of drugs —

- Form 8 :- Application for licence to import Schedule (1 & C) (only).
- Form 8A :- Application for licence to import drugs specified in Schedule X.
- Form 9 :- Form of undertaking to accompany an application for an import licence.
- Form 10 :- Licence to import Schedule C & G drugs only.
- Form 10A :- Licence to import Schedule X drugs only.
- Form 41 :- Registration certificate to be issued for import of drugs in India.
- Both the import ^{licence} and registration certificate are valid for a period of three years from date of issue.

- Offences and Penalty related to import of drugs.

OFFENCES	PENALTY (FINE)	TAIL	CONDITIONS
Import adulterated, spurious or cosmetic unsafe for use.	up to 5000	up to 3 year	on first conviction
	up to 10000	up to 5 year	on second conviction
Import of any drugs or cosmetics other than referred above the import of which is prohibited	up to 500	up to six month	first conviction
	up to 1000	up to 1 year	second conviction
Import of any drugs or cosmetics in <u>contravention</u> with provision of any notification issued under section 10-A	up to 5000	up to 3 years	first conviction
	up to 10,000	up to 5 years	second conviction

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MANUFACTURE OF DRUGS

Definition - Manufacture in relation to any

drugs or cosmetics includes any process or part of process for making, altering, ornamenting, finishing, packing, labelling, breaking up or otherwise treating or adopting any drug or cosmetic for sale or distribution but does not include compounding or dispensing of any drug or the packing of any drug or cosmetic in the ordinary course of retail business.

- Prohibition of manufacture and sale of certain drugs :-

• The following categories of drugs and cosmetic are prohibited to be manufactured or sold :-

i) Any drugs or cosmetics which is substandard, misbranded, adulterated or

spurious.

ii) Any patent or proprietary medicine without clear indication of ingredients.

iii) Any drug claiming for accurate cure or prevention of disease listed in Schedule J.

iv) Manufacturing for sale of any drugs or cosmetics containing any harmful ingredients.

v) Any manufacturing of formulation containing drug or cosmetic which has been imported into our country in contravention to the provision of the Act and Rules.

- Conditions for grant of licence and Conditions of licence for manufacture of drugs

for manufacturing of any drugs, it is necessary to fulfill all the condition required for licence.

Conditions precedent → condition before licence is granted.
Conditions subsequent → condition after licence is granted.

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• There are several types of licenses, which is required for manufacturing :-

- i) license for manufacture of schedule C & C₁ drugs.
- ii) license for manufacture of schedule X drugs.
- iii) license for manufacture of drugs other than those specified in schedule C & C₁, X.
- iv) Manufacture of drugs for test, examination and analysis
- v) Manufacture of new drugs.
- vi) loan license
- vii) Repacking license

i) License for manufacture of schedule C & C₁.

Required following conditions :-

- A license is obtained from licensing authority on application in prescribed form No. 47 with prescribed fees.

application for grant of renewal for manufacturing license.

• Licensed premises must conform to the

requirements of GMP specified in schedule M.
(Good Manufacturing Practices)

• The licensee must provide adequate arrangement for testing the strength & quality of drugs.

• Required quality staff:

- Graduate in Pharmacy / pharmaceutical chemistry with atleast 18 month experience or in

graduate in medicine with atleast 3 year experience.

• Must have adequate facilities for the storage.

• Must maintain the manufacturing and analytical records of drugs (5 year records from the date of manufacture).

• Must allow inspector to inspect the premises.

• Some special requirement:-

- All schedule C drugs must be issued in

sterilized glass containers (prevent from microbial)

- Drugs must comply with the standard of strength, quality & purity as specified in schedule F.

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i) sterility testing should be done for all biological products such as sera, vaccines, antigen, insulin etc--

ii) License for manufacture of schedule X drugs.

General conditions are same as other.

Additional condition for this :-

- Account of all transactions regarding manufacture should be maintained in a serially bound and paged register.
- Manufacturer is required to send the copies of invoice of sale/manufacture of drugs to licensing authority in every three months.
- Preparations should be labeled as Xrx (Red ink).
- No schedule X drugs should be supplied by the way of physician sample.
- Drugs specified in schedule X drugs shall be marketed in packaging not more than 100

unit dose - Tablet/capsule, 300ml - Oral liquid and 5ml - injection.

iii) License for manufacture of drugs other

than those specified in C & G, X.

A license is obtained from license authority on application in prescribed form No. 44 with prescribed fees.

If conditions are fulfilled then license is issued in prescribed form No. 45.

- General conditions are same as other and additional condition for this :-

- Maintain an inspection book in which inspector may record their interference.
- Licensee must provide any additional requirement as directed by authority
- Licensee must furnish the data of sterility of drugs if demanded.

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iv) Manufacture of drugs for test, examination and analysis required following conditions:—

- The licence is obtained ^{from} licensing authority by form No. 49.
- Licensee must use manufactured drugs exclusively for the purpose for which they are manufactured.
- Must maintain the records of the manufactured drugs, showing their quantity + name of the persons to whom they have been supplied.
- Maintain inspection book
- Licensee must comply with such additional requirements of which he has been given at least 1-month notice by the licence authority.
- Others same as general conditions.

v) Manufacture of new drugs

In addition to provisions for manufacture of drugs, there should be documentary evidence for quality, purity, therapeutic trials of new drugs and evidence for approval under Schedule 'Y' (clinical trials).

vi) Loan licence :—

A licence issued by the licensing authority to an applicant who does not have its own arrangement for manufacture but who intends to avoid himself of the manufacturing facilities owned by another licencee.

- The general conditions are same as other and the additional conditions are:—
- Application must be supported by parent firm.
- Drug inspector inspects the premises of parent firm.

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- The licensee must test each batch of raw material and finished product.
 - maintain proper records
 - The production must be supervised by competent person of loan licensee.
- vii) Repacking licence :-
- Process of breaking up any drug from its bulk container into small packages and labelling with a view to their sale and distribution is done under repacking licence.
- Application is made for grant and renewal of licence in form 24-B.
 - The licence is issued by licensing authority after inspection in form 25-B.
 - Conditions :-
 - Requirement of GMP specified in Schedule M.
 - ~~Other~~ General conditions are same as other

- Repacking should be supervised by competent persons.
 - There should be adequate arrangement for testing of samples.
 - The Repacked drug should bear the no. of licence with word "Rpg. Lic. No." on its label
 - The licence should be kept on the licensed premises + should produce before an inspector on demand.
 - Licensee should comply with the provision of the act.
- OFFENCES + PENALTIES for MANUFACTURE OF DRUGS
- | <u>OFFENCES</u> | <u>PENALTY</u> |
|---|---|
| • Manufacture of drugs/ adulterated/spurious drugs likely to cause death. | 5 year to life imprisonment and 10000 or more |

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- Manufacture drugs without license or adulterated drug not likely to cause death or grievous body hurt
- manufacture of drug in ~~any~~ contravention of any other provision
- failure to keep records or disclose required information
- falsely warranty by manufacturer to a purchaser
- Use of govt. analyst report for advertisement

1-3 year imprisonment and 5000 or more

1-2 year imprisonment with fine

1-year imprisonment & or fine Rs. 1000

imprisonment or fine upto 500

fine upto Rs. 500

COMPLETED

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